

Amended Excerpts

1. Line 7 through 12:

7 This Bill:

8 →provides that the Point of the Mountain State Land Authority is a local authority under
9 Title 32B, Alcoholic Beverage Control Act;

9a → ~~is~~ → provides that a driver license issued by a foreign country or a driver privilege card
is a

9b valid proof of age; ←~~is~~

10 →enacts provisions relating to the local consent of a local authority when the commission
11 issues a license;

12 →amends provisions related to a designated conveyance area;

2. Line 634 through 659:

634 event:

635 (a) that is held in or on the premises of an on-premise banquet licensee; and

636 (b) to which entry is restricted by an admission fee.

637 [(98)](100) ~~is~~ → (a) ←~~is~~ "Proof of age" means:

638 ~~is~~ → (i)(a) ←~~is~~ an identification card;

639 ~~is~~ → (ii)(b) ←~~is~~ an identification that:

640 ~~is~~ → (A)(i) ←~~is~~ is substantially similar to an identification card;

641 ~~is~~ → (B)(ii) ←~~is~~ is issued in accordance with the laws of a state other than

641a Utah in which the

642 identification is issued;

643 ~~is~~ → (C)(iii) ←~~is~~ includes date of birth; and

644 ~~is~~ → (D)(iv) ←~~is~~ has a picture affixed;

645 ~~is~~ → (iii)(c) ←~~is~~ a valid driver license certificate that:

646 ~~is~~ → (A)(i) ←~~is~~ includes date of birth;

647 ~~is~~ → (B)(ii) ←~~is~~ has a picture affixed; and

648 ~~is~~ → (C)(iii) ←~~is~~ is issued under Title 53, Chapter 3, Uniform Driver License

648a Act, in

649 accordance with the laws of the state in which it is issued, or in accordance

650 with federal law by the United States Department of State;

651 ~~Ĥ~~→ **(iv)(d)** ←~~Ĥ~~ a military identification card that:
652 ~~Ĥ~~→ **(A)(i)** ←~~Ĥ~~ includes date of birth; and
653 ~~Ĥ~~→ **(B)(ii)** ←~~Ĥ~~ has a picture affixed; ~~Ĥ~~→ ~~or~~
654 **(v)(e)** ←~~Ĥ~~ a valid passport ~~Ĥ~~→ ~~;~~
654a **(f) a valid driver license that:**
654b **(i) includes a date of birth;**
654c **(ii) has a picture affixed; and**
655 **[{~~(iv)~~ }](iii) is issued under the laws of a country other than the United States; or**
656 **(iv) a driving privilege card issued in accordance with Section 53-3-207.**
657 **(b) "Proof of age" does not include a driving privilege card issued in accordance with**
658 **Section 53-3-207.** ←~~Ĥ~~
659 [(99)](101) "Provisions applicable to a sublicense" means:
660 (a) for a full-service restaurant sublicense, the provisions applicable to a full-service
661 restaurant license under Chapter 6, Part 2, Full-Service Restaurant License;

3. Line 1744 through 1762:

1744 Section **32B-4-403.** is amended to read:
1745 **32B-4-403 (Effective 05/06/26)Unlawful sale, offer for sale, or furnishing to**
1746 minor.
1747 (1) ~~Ĥ~~→ **A****Except as provided in Subsection (3), a** ←~~Ĥ~~ person may not ~~Ĥ~~→ **knowingly** ←~~Ĥ~~
1747a sell, offer for sale, or furnish an alcoholic product to a minor.
1748 ~~Ĥ~~→ **(2)** ←~~Ĥ~~ (a) (i) ~~Ĥ~~→ **Except as provided in Subsection (3), a person is guilty of a class {**
1748a **B}A**
1749 **misdemeanor if: [the person who violates Subsection (1)**
1749a **negligently or recklessly**
1750 **fails to determine whether the recipient of the alcoholic product is a minor.]**
1751 [{**(a) the person who violates Subsection (1) negligently or recklessly fails to determine**}]
1752 ←~~Ĥ~~
1753 ~~Ĥ~~→ [{**whether the recipient of the alcoholic product is a minor; or**}]
1754 [{**(b) the person who violates Subsection (1) knows the recipient of the alcoholic product**
1755 ~~}] ←~~Ĥ~~~~
1756 ~~Ĥ~~→ [{**is a minor.**}] ←~~Ĥ~~
1757 [(ii) ~~Ĥ~~→ **(c) As used in this Subsection [(2)(a)](2),**
1758 **"negligently" means with simple**
1759 **negligence.** ←~~Ĥ~~
1760 [(b) ~~Ĥ~~→ **[Except as provided in Subsection (3), a person is guilty of a class A misdemeanor**

1757a **if**
1758 **~~the person who violates Subsection (1) knows the recipient of the alcoholic product~~**
1758a **~~is~~**
1759 **~~a minor.]~~**
1759a **(2) A violation of Subsection (1) is a class A misdemeanor.** ←H
1760 (3) This section does not apply to the furnishing of an alcoholic product to a minor in
1761 accordance with this title:
1762 (a) for medicinal purposes by: